
Fairhaven C of E Primary School**Audit Date: 26/11/20****Report: Remote consultation****DPE: Stuart Lee****School member: Stephanie Lake and Jan Chambers**

1. Consultation details

The meeting was attended by: Stephine Lake and Jan Chambers

The purpose of the remote session was to support the school by making them aware of the latest issues being experienced by schools relating to data protection and gain a refocus for data protection in general. In addition, the school were updated as to policy and documentation updates and signposted to the Knowledge Bank best practice areas and updates.

The school has a governor assigned for GDPR and have started to utilise Cloud based systems i.e. Google classroom.

2. Audit walk findings

As it was not possible to complete onsite audit it was suggested the school could complete an after-school walk and compare any findings with the previous report actions and recommendations. In addition, the school can also use the quick reference sheet which demonstrates best practice that can be followed: <https://kb.dataprotection.education/best-practice-library/documents/drip-feeds/57-dpe-quick-reference-guide>

3. Compliance actions:

Jan confirmed that she is currently updating key data protection documentation.

- **Privacy Notice** – school signposted to and to update with the latest COVID-19 guidance. School will also update the appendix to include all third parties i.e. Tapestry. Once complete the school will upload to the school website;
- **GDPR Policy** – school signposted to and to update with the latest COVID-19 guidance. School will check to ensure the policy aligns to practice in school and any reference documents can be referred to i.e. publication scheme;
- **Data Breach Procedure** – discussed disseminating again to ensure all staff understood what a data breach was and how to report this. Also discussed data breach online training (5 – 10 minute) that it would be beneficial for staff to complete;
- **SAR procedure** – school to ensure key staff understand how to respond to a SAR and are familiar with the procedure.

The school also has the option of using DPE's records management policy (mentioned in the GDPR policy) or adapting documentation into school guidance.

Jan will use the DPE best practice area compliance checklist and documentation to check against: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/commitment-to-compliance> The check lists can also be printed to show progress to governors and support consultants during visits.

School were shown the latest data breach and SAR best practice areas.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. DPE Record of Processing (RoP) manager will also include data retention and can be

used in addition to the IRMS retention schedule. Reports to show retention periods can be populated from the RoP Manager.

3.2. Staff training and awareness

There are now additional training options available including a GDPR refresher module. The school can now identify relevant staff for specific training modules i.e. clear desk and password security, for example.

The school can use staff meetings/briefings to raise staff awareness and to bring data protection back in to focus.

Steph confirmed that they will incorporate data protection within the January Inset training.

3.3. Governance check

As there were a number of requests from schools for additional governor resources, DPE has now added a governor best practice area to the DPE website. This includes a model terms of reference and other useful documentation. The school has the option of using this to support governors and compliance. In addition, the school can use the compliance checklists that can be produced to support compliance:

4. Freedom of Information and Publication Scheme

The school has some information published but needs to revisit the publication scheme. As the ICO and DfE guidance differ regarding what documents, DPE have amalgamated the information and produced a model publication scheme. **LM to liaise with Jan as to obtaining the latest version and updating (actioned).**

5. Technical measures

With more staff working remotely there is never a better time than now to check technical security measures. If not already, DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources>Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire> (not discussed fully during the session)

Check iPad/Tablet security. Are all laptops and devices encrypted? How do you manage equipment that is taken off site and what is stored on this equipment? Do staff use their own devices when working remotely, if so, do you have a BYOD and work away from school policy and has best practice been communicated:

<https://kb.dataprotection.education/index.php/best-practice-library/best-practice/working-out-of-school>

6. Record of Processing (RoP) tool and data mapping

RoP demonstrated during the session. DPE will shortly complete a global clone with approximately 100 of the initial ROPs. Rather than each school completing individually, DPE will be populating as many processes as possible and then work with schools to support completion. It is a requirement under article 30 of the GDPR and has started to form part of the basis for future remote sessions and visits. The global clone is scheduled to be completed at the start of December. Additional information can be obtained from: <https://kb.dataprotection.education/news-top/news/94-siteupdates/175-record-of-processing-rop-supporting-information>

7. Best practice areas and news section

The best practice areas and news section continue to be a valuable resource where the latest Covid news and best practice areas can be accessed. In addition to the newsletters the school should continue to make use of the available resources, for example:

Working away from school: <https://dataprotection.education/index.php/best-practice-library/best-practice/working-out-of-school>

Protocol for online teaching: <https://dataprotection.education/news-top/news/83-best-practice-updates/186-protocol-for-setting-up-and-delivery-of-online-teaching-and-learning>